

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:
Date Filed:

-----X
MOHAMMED EL GUAZZAR,

Plaintiff designates New York
County as the place of trial.

Plaintiff,

SUMMONS

-against-

The basis of venue is:
Location of Accident

BRIAN T. GREEN, THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
P.O. ARLENE TEJADA (TAX ID 967362),
P.O. "JANE DOES #1-10" and P.O.
"JOHN DOES #1-10" (said names being
fictitious and presently unknown, persons
intended being the police officers involved
in the subject incident),

Plaintiff's Residence:
517 West 159 Street - Apt. 4
New York, NY 10032

Defendants.
-----X

To the above named Defendant

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney(s) within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 13, 2020

Yours, etc.
BURNS & HARRIS, ESQS.

By:


Alison R. Keenan
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000
File No: 206517

Defendant's Address:

Brian T. Green
45 Pondfield Road West
Bronxville, New York 10708

Brian T. Green
1467 Midland Avenue
Bronxville, New York 10708

The City Of New York
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, New York 10007

P.O. Arlene Tejada (Tax Id 967362),
New York City Police Department
33 Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:
Date Filed:

-----X
MOHAMMED EL GUAZZAR,

Plaintiff,

VERIFIED COMPLAINT

-against-

BRIAN T. GREEN, THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT,
P.O. ARLENE TEJADA (TAX ID 967362),
P.O. "JANE DOES #1-10" and P.O.
"JOHN DOES #1-10" (said names being
fictitious and presently unknown, persons
intended being the police officers involved
in the subject incident),

Defendants.

-----X
Plaintiff, by his attorneys, BURNS & HARRIS, ESQS., as and for a Verified Complaint
herein, respectfully sets forth and alleges:

AS AND FOR A FIRST CAUSE OF ACTION,
AS TO DEFENDANT, BRIAN T. GREEN

1. That at all times herein mentioned, defendant, BRIAN T. GREEN was, and still is, a resident of the County of Westchester, City and State of New York.
2. That at all times herein mentioned, the defendant, BRIAN T. GREEN, was the owner of a certain motor vehicle bearing New York State license plate number JHP5681.
3. That at all times herein mentioned, the defendant, BRIAN T. GREEN, operated said motor vehicle bearing New York State license plate number JHP5681.
4. That at all times herein mentioned, the defendant, BRIAN T. GREEN, maintained said motor vehicle bearing New York State license plate number license plate number JHP5681.
5. That at all times herein mentioned, the defendant, BRIAN T. GREEN, managed

said motor vehicle bearing New York State license plate number license plate number JHP5681.

6. That at all times herein mentioned, the defendant, BRIAN T. GREEN, controlled said motor vehicle bearing New York State license plate number license plate number JHP5681.

7. That at all times herein mentioned, the roadways located in the vicinity of Broadway & West 173rd Street, in the County of New York, City and State of New York were public roadways and thoroughfares in common use by the residents of the State of New York, and others.

8. That on January 15, 2020, Defendant, BRIAN T. GREEN was operating said motor vehicle bearing New York State License Plate Number JHP5681 on the public roadway in the vicinity of Broadway & West 173rd Street, New York, New York.

9. That on January 15, 2020, the plaintiff, MOHAMMED EL GUAZZAR was lawfully riding his bicycle upon the public roadway in the vicinity of Broadway & West 173rd Street, New York, New York.

10. That on January 15, 2020, the motor vehicle owned and operated by the Defendant, BRIAN T. GREEN, carelessly came into contact with the Plaintiff, MOHAMMED EL GUAZZAR, a lawful bicyclist, upon the public roadway in the vicinity of Broadway & West 173rd Street, New York, New York.

11. That by reason of the foregoing, the plaintiff was injured.

12. That the foregoing accident and the resulting injuries to the plaintiff were caused solely by reason of the carelessness, negligence, wanton and willful disregard on the part of the defendant, BRIAN T. GREEN, and without any fault or negligence on the part of the plaintiff contributing thereto.

13. That defendant, BRIAN T. GREEN, was negligent, careless and reckless in the

use, ownership, operation, management, maintenance, supervision and control of the aforesaid motor vehicle and the defendant was otherwise negligent, careless and reckless under the circumstances then and there prevailing.

14. That by reason of the foregoing, plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and she will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and/or in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

15. That this action falls within one or more of the exceptions set forth in CPLR 1602.

16. That by reason of the foregoing, the plaintiff sustained severe and permanent personal injuries and was otherwise damaged.

17. That by reason thereof, Plaintiff is entitled to recover for non-economic losses that are not included within the definition of "basic economic loss" as set forth in Section 5102(a) if the insurance law of the State of New York.

18. That the Plaintiff is a "covered person" as defined by Section 5102(j) of the insurance law of the State of New York.

19. That as a result of the foregoing, this plaintiff suffered serious injuries as defined by Section 5102(d) of the Insurance Law of the State of New York.

20. That by reason thereof, plaintiff sustained serious injuries and economic loss

greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

21. That plaintiff is not seeking to recover any damages for which plaintiff has been reimbursed by no-fault insurance and/or for which no-fault insurance is obligated to reimburse plaintiff. Plaintiff is seeking to recover only those damages not recoverable through no-fault insurance carrier under the facts and circumstances in this action.

22. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION, AS TO DEFENDANTS, THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND
P.O. ARLENE TEJADA (TAX ID 967362).

23. At all times relevant hereto, Defendant CITY OF NEW YORK is a municipality existing under and by virtue of the laws of the State of New York.

24. At all times relevant hereto, defendant CITY OF NEW YORK operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

25. At all times relevant hereto, defendant, P.O. ARLENE TEJADA (TAX ID 967362) was employed as a police officer by the Police Department of the City of New York.

26. At all times relevant hereto, Defendant P.O. "JANE DOES" #1-10 said names being fictitious and presently unknown, persons intended being the police officers involved in the subject incident, was employed as a police officer by the Police Department of the City of New York.

27. At all times relevant hereto, Defendant P.O. "JOHN DOES" #1-10 said names being fictitious and presently unknown, persons intended being the police officers involved in the subject incident, was employed as a police officer by the Police Department of the City of New York.

28. At all times relevant hereto, defendant, P.O. ARLENE TEJADA (TAX ID 967362), upon information and belief, was assigned to the 33rd Precinct located at 2207 Amsterdam Avenue, New York, New York 10032.

29. At all times relevant hereto, defendant P.O. "JANE DOE" #1-10 were, upon information and belief, assigned to the 33rd Precinct located at 2207 Amsterdam Avenue, New York, New York 10032.

30. At all times relevant hereto, defendant P.O. "JOHN DOE" #1-10 were, upon information and belief, assigned to the 33rd Precinct located at 2207 Amsterdam Avenue, New York, New York 10032.

31. At all times relevant hereto, the defendants were acting in the course of their employment by the CITY OF NEW YORK and POLICE DEPARTMENT OF THE CITY OF NEW YORK.

32. That all of the conditions precedent to the commencement of an action against the defendant CITY OF NEW YORK have been met in that a Notice of Claim was filed with the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT on February 26, 2020 on behalf of plaintiff, MOHAMMED EL GUAZZAR and within 90 days of presentation of the Notice of Claim, and the claim remains unadjusted by the CITY OF NEW YORK. This action has been commenced within one (1) year and ninety days from the accrual of this cause of

action, and THE CITY OF NEW YORK has conducted statutory hearing of the plaintiff, MOHAMMED EL GUAZZAR on June 4, 2020.

33. That at all times relevant hereto, defendant, THE CITY OF NEW YORK is further responsible for all actions of its agents, representatives and employees under the *Doctrine of Respondeat Superior*.

THIRD CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF, MOHAMMED EL GUAZZAR' CIVIL RIGHTS)

34. At all times relevant hereto, defendant, defendant, CITY OF NEW YORK employed P.O. ARLENE TEJADA (TAX ID 967362), as a police officer in the New York City Police Department.

35. Upon information and belief, defendants P.O. ARLENE TEJADA (TAX ID 967362, is a graduate of The Police Academy of the City of New York.

36. At all times relevant hereto, defendants CITY OF NEW YORK employed the Defendant P.O. "JANE DOES" and "JOHN DOES" #1-10 said names being fictitious and presently unknown, persons intended being the police officers involved in the subject incident, as police officers in the New York City Police Department.

37. Upon information and belief, defendants P.O. "JANE DOES" and "JOHN DOES" #1-10 said names being fictitious and presently unknown, persons intended being the police officers involved in the subject incident are graduates of The Police Academy of the City of New York.

38. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant Officers in the protection of the

Constitutional rights of the plaintiff, MOHAMMED EL GUAZZAR, under the Fourteenth Amendment to the United States Constitution.

39. In addition, the defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and Patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, MOHAMMED EL GUAZZAR, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens such as the plaintiff herein.

40. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as police officers of said state, city and county.

41. The defendant CITY OF NEW YORK failed to competently and sufficiently hire, train and retain the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, MOHAMMED EL GUAZZAR, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

42. That on or about January 15, 2020, and prior thereto, the CITY OF NEW YORK, in violation of 42 U.S.C. § 1983 caused the plaintiff, MOHAMMED EL GUAZZAR, to be injured and damaged in failing to competently hire, train and retain police officers, including but not limited to the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as plaintiff, against unreasonable risk of harm by

conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as plaintiffs herein.

43. On or about January 15, 2020, the plaintiff, MOHAMMED EL GUAZZAR, was lawfully and properly present in the vicinity of Broadway & West 173rd Street, New York, New York.

44. On or about January 15, 2020, the defendant, P.O. ARLENE TEJADA (TAX ID 967362) was present and on duty in the vicinity of in the vicinity of Broadway & West 173rd Street, New York, New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

45. On or about January 15, 2020, the defendants, P.O. "JANE DOES" and "JOHN DOES" #1-10 were present and on duty in the vicinity of in the vicinity of Broadway & West 173rd Street, New York, New York, as part of his regular and official employment as a police officer for the defendant, THE CITY OF NEW YORK.

46. Commencing on January 15, 2020 at approximately 10 a.m., the individual defendant officers, assaulted and battered, with excessive force, and wrongfully and falsely arrested, detained and confined the plaintiff, MOHAMMED EL GUAZZAR, without probable or just cause, grounds or provocation.

47. Following said assault, battery and arrest, the defendant officers wrongfully detained and arrested the plaintiff, MOHAMMED EL GUAZZAR, and imprisoned him.

48. Immediately thereafter, aforementioned defendants, their agents, servants and employees falsely arrested and imprisoned the plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York,

unreasonably handcuffed him too tightly and threatened the plaintiff with the use of physical force.

49. The false arrest and imprisonment of the plaintiff, MOHAMMED EL GUAZZAR, was caused by all of the defendants, their servants, agents and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of any crimes.

50. As a result of the aforesaid arrest, plaintiff, MOHAMMED EL GUAZZAR, was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. §1983.

51. As a further result of the deprivation of plaintiff, MOHAMMED EL GUAZZAR, right to be free from the deprivation of rights guaranteed to him by the Fourth, Fifth and Fourteenth Amendment to the United States Constitution, he was caused to suffer injury and damage both mentally and physically, severe nervous shock and emotional distress and illness.

52. On or about January 15, 2020, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though the defendants knew or should have known that the plaintiff was wholly innocent.

53. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, restrain and imprison the plaintiff without his consent; that the plaintiff was at all times

conscious of his arrest, did not consent to the assault, battery, and false arrest, and the assault, false arrest and imprisonment were not otherwise privileged.

54. The assault, battery, arrest and imprisonment of the plaintiff were negligent, reckless and intentional and were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under the color of statute, ordinances, regulations, customs and usages of the State, City and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK, falsely charged the plaintiff with Violations of the Penal Law of the State of New York although the defendants, acting in such capacity, knew that such charges were false.

55. That the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the negligence, carelessness and reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

56. That the defendant CITY OF NEW YORK, its agents, servants and/or employees failed to hire, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State of New York and the City of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences so as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.

57. That on or about January 15, 2020, at approximately 10:00 a.m. of that day, while plaintiff was lawfully and properly in the vicinity of Broadway & West 173rd Street, in the County of New York, City and State of New York, and at subsequent times thereafter, the defendants, their agents, servants and employees maliciously detained plaintiff, MOHAMMED EL GUAZZAR, without probable cause.

58. That by reason of the aforesaid unlawful arrest, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

59. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

60. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

61. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under

the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiffs not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

62. That the deprivation of plaintiff's constitutional rights was the result of a custom and/or policy adopted by THE CITY OF NEW YORK.

63. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy on using excessive force against innocents.

64. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of arresting innocent persons in order to meet productivity goals.

65. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of wrongfully arresting minority individuals.

66. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of manufacturing evidence against individuals.

67. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of assaulting, battering, falsely arresting and imprisoning individuals without probable cause or justification.

68. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of failing to discipline officers for falsely and improperly arresting individuals without probable cause or justification.

69. That the deprivation of plaintiff's constitutional rights was the result of the City of New York's custom and/or policy of performing improper searches and seizures.

70. That the said customs and/or policies may be inferred from the existence of other similar civil rights actions that have been brought against The City of New York.

71. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiffs will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiffs incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiffs have suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiffs will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiffs' great damage.

72. That on or about January 15, 2020, in violation of the rights, privileges and immunities guaranteed to him under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and under the color of State law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION:
(FALSE IMPRISONMENT)

73. Plaintiff, MOHAMMED EL GUAZZAR, repeats and realleges each and every allegation contained herein, as though the same were set forth at length.

74. On or about January 15, 2020, in the vicinity of Broadway & West 173rd Street, in the County of New York, City and State of New York, the defendants, their agents, servants and/or employees wrongfully and imprisoned and detained plaintiff, MOHAMMED EL GUAZZAR, without any right or grounds therefore.

75. That the said imprisonment was caused by the defendants, their agents, servants and/or employees without any warrant or other legal process and without authority of the law and without any reasonable cause or belief that the plaintiff, MOHAMMED EL GUAZZAR, was in fact guilty of such crimes.

76. On or about January 15, 2020 the defendants and each of them acting individually and in concert and while on duty, detained and imprisoned the plaintiff even though the defendants knew or should have known that the plaintiff, MOHAMMED EL GUAZZAR, was wholly innocent of any criminal charges.

77. While plaintiff was so engaged, as aforesaid, the defendants, their agents, servants and employees, wrongfully and unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the sole charge, then made, charged that plaintiff violated various sections of the Penal Law of the State of New York, and imprisoned the plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled them to go with the said defendant police officers to be detained and imprisoned plaintiff.

78. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of plaintiff.

79. That at all times relevant hereto, the defendants failed to act, protect and safeguard the plaintiff.

80. That at all times relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

81. That the defendants, their agents, servants and/or employees acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement.

82. That the plaintiff was wholly innocent of the said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and were forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

84. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

83. That by reason of the false imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, stripped-searched in being so detained, charged and prosecuted with various crimes, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting their necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

84. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

85. By reason of his false imprisonment, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FIFTH CAUSE OF ACTION:
(ASSAULT AND BATTERY OF MOHAMMED EL GUAZZAR)

86. Plaintiff, MOHAMMED EL GUAZZAR, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

87. On or about January 15, 2020, in the vicinity of Broadway & West 173rd Street, County of New York, City and State of New York, the plaintiff, MOHAMMED EL GUAZZAR, was assaulted and battered by the defendant police officers and/or others acting in concert with them.

88. The force used in the course of his arrests by the defendant Officers was excessive, unnecessary, unwarranted and violent.

89. As a result of the defendant officers' aforementioned assault and battery of the plaintiff, MOHAMMED EL GUAZZAR, plaintiff has been damaged in an amount exceeding the

jurisdictional limit of this Court to be determined in a trial of this action.

SIXTH CAUSE OF ACTION:
(COMMON LAW NEGLIGENCE - MOHAMMED EL GUAZZAR)

90. Plaintiff, MOHAMMED EL GUAZZAR, repeats and realleges each and every allegation contained herein, as though the same were set forth at length herein.

91. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

92. That the defendants had a duty to use reasonable care in the stopping, and detaining of plaintiff.

93. That the defendants had a duty to ensure plaintiff was safely stopped, and detained.

94. The defendants P.O. "JANE DOES" and "JOHN DOES" #1-10 were negligent in failing to use reasonable care in the detainment, of the plaintiff, MOHAMMED EL GUAZZAR on or about January 15, 2020.

95. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said

injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

96. By reason of the negligence of the defendants, the plaintiff, MOHAMMED EL GUAZZAR, has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SEVENTH CAUSE OF ACTION:
PLAINTIFF, MOHAMMED EL GUAZZAR' VIOLATION OF RIGHT TO
BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE CONSTITUTION
OF THE STATE OF NEW YORK

97. Plaintiff, MOHAMMED EL GUAZZAR, repeats and realleges each and every allegation contained herein as though the same were set forth at length herein.

98. On or about January 15, 2020, in the vicinity of Broadway & West 173rd Street, County of New York, City and State of New York, in violation of the rights, privileges and immunities guaranteed to him under the Constitution of the State of New York, the plaintiff, MOHAMMED EL GUAZZAR, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the plaintiff, MOHAMMED EL GUAZZAR, even though the defendants knew or should have known that the plaintiff was wholly innocent.

99. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, have suffered and continue to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of

which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

100. That by reason of his unlawful search and seizure, the plaintiff, MOHAMMED EL GUAZZAR, has been damaged in an amount exceeding the jurisdictional limits of this Court, to be determined upon the trial of this action.

WHEREFORE, plaintiffs demand judgment against the defendants on Each Cause of Action in amounts to be determined upon the trial of this action, together with interest and the costs and disbursements of this action.

Additionally, plaintiff, MOHAMMED EL GUAZZAR, demands in respect of all Causes of Action, the additional total sum of \$5,000,000.00 in punitive damages and attorney fees pursuant to 42 U.S.C. §1988.

Dated: New York, New York
November 13, 2020

Yours, etc.
BURNS & HARRIS, ESQS.

By:



Alison R. Keenan
Attorneys for Plaintiff
233 Broadway, Suite 900
New York, New York 10279
(212) 393-1000
File No: 206517

ATTORNEY VERIFICATION

Alison R. Keenan, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

I am the attorney for the plaintiff in the within action and have read the foregoing COMPLAINT the contents thereof; the same is true upon information and belief.

This verification is made by this affiant and not by said plaintiff because said plaintiff reside(s) in a County other than the County wherein your affiant maintains his office.

The grounds of affiant's knowledge and belief are as follows: Conference with clients and notes and records contained in the file maintained in the regular course of business.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 13, 2020


Alison R. Keenan